

**Court No. - 21**

**Case :-** WRIT - C No. - 5250 of 2023

**Petitioner :-** Raghavendra Pratap Singh

**Respondent :-** State Of U.P. And 4 Others

**Counsel for Petitioner :-** Vachaspati Shukla

**Counsel for Respondent :-** C.S.C.

**Hon'ble Manoj Kumar Gupta,J.**

**Hon'ble Syed Qamar Hasan Rizvi,J.**

The petitioner has challenged the final assessment order dated 31.8.2022 in a case of alleged theft of electricity. Infact, it is not an order of final assessment but a communication sent to the petitioner informing him that he had not filed any objection against the provisional assessment notice dated 3.6.2022 and consequently the same is being treated to be final and conclusive.

Learned counsel for the petitioner submits that the petitioner has filed objection on 13.7.2022 (at page 28 of the writ petition). He has also invited the attention of the Court to the endorsement made at the bottom of the said objection bearing stamp of the office of Executive Engineer, Electricity Distribution Division-IIInd and it is contended on basis thereof that the respondents ought to have considered the objection before treating the provisional assessment to be final.

Sri Alok Mishra, learned counsel for the respondent electricity department tried to contend that since objection was not filed within time, therefore, the provisional assessment was treated to be final.

Even where the objection is not filed, it is incumbent upon the Assessing Officer to apply his mind and record a finding relating to theft of electricity or use of unauthorized means to extract the electricity. The casual manner in which the proceedings are sought

to be finalized, cannot be sustained.

Accordingly, we dispose of the instant petition with direction to the respondent no. 3 to treat the objection filed by the petitioner on 13.7.2022 as objection to the provisional assessment notice and proceed to decide the same strictly in accordance with the procedure prescribed under the Electricity Supply Code, 2005.

In consequence, the impugned communication stands quashed.

The petition is disposed of accordingly.

**Order Date :- 15.2.2023**

Arif

(Syed Qamar Hasan Rizvi,J.) (Manoj Kumar Gupta,J.)